

South Korea Network Act and the Telecommunications Business Act Transparency Report

**Based on Article 64-5 of the Act on Promotion of
Information and Communications Network Utilization
and Information Protection**

The two bills that passed on May 20, 2020 are amendments to the Network Act and the Telecommunications Business Act that requires online service providers (OSPs) to implement technical and administrative measures to prevent the circulation of illegal sexual content on their platforms. The technical and managerial measures stipulated in the two bills include requirements such as having an intake mechanism for reports on illegal sexual content, removing / blocking access to such content upon notice, recording the operational status of technical measures, designating a person responsible for compliance, and submitting an annual transparency report. This document is the first publication of the transparency report required under these amendments.

Type of content illegal under these acts

1

Illegally filmed content or copies (including reproduced copies) under Article 14 of the Act on Special Cases Concerning the Punishment, etc. of Sexual Crimes;

2

Compilations, compositions, creations or copies (including reproduced copies) under Article 14-2 of the Act on Special Cases Concerning the Punishment, etc. of Sexual Crimes;

3

Child or youth pornography under subparagraph 5 of Article 2 of the Act on Protection of Children and Youth against Sex Offenses.

General company information

Name of the service provider	Google LLC
Name of the CEO	Sundar Pichai
Services	Search, YouTube
Person in charge of preventing circulation of illegal photos, etc.	David Graff, Vice President, Trust and Safety

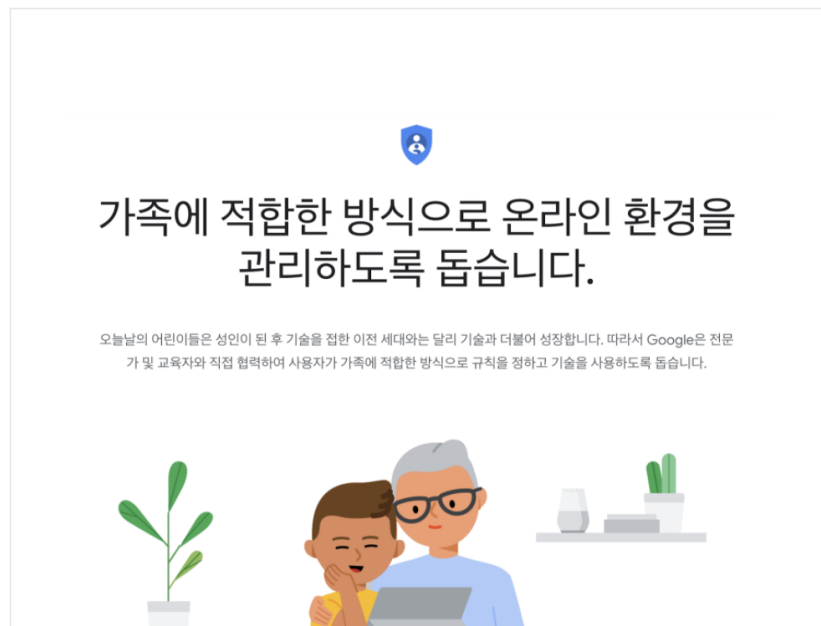
| General compliance efforts with allegedly illegal material on our platforms

Child Sexual Abuse Material (CSAM)

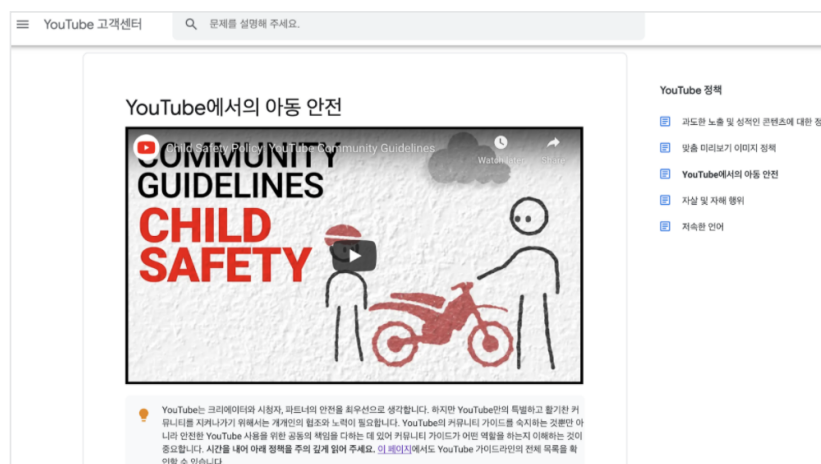
CSAM stands for child sexual abuse material. It consists of any visual depiction, including but not limited to photos, videos, and computer-generated imagery, involving the use of a minor engaging in sexually explicit conduct. This is generally referred to as “child pornography” in the law.

Google’s approach to combating CSAM

Google is committed to fighting CSAM online and preventing our platforms from being used to spread this material. We devote significant resources—technology, people, and time—to detecting, deterring, removing, and reporting child sexual exploitation content and behavior. For more on our efforts to protect children and families see the [Google Safety Center](#) and YouTube’s [Community Guidelines](#).



Google Safety Center Main Page



YouTube Community Guidelines - Child Safety

How Google identifies CSAM on its platform

We invest heavily in fighting child sexual exploitation online and use technology to deter, detect, and remove CSAM from our platforms. This includes automated detection and human review, in addition to relying on reports submitted by our users and third parties such as NGOs. We deploy hash matching, including YouTube's CSAI Match, to detect known CSAM in images and videos. We also deploy machine learning classifiers to discover never-before-seen CSAM, which is then confirmed by our specialist review teams. Using our classifiers, Google created the Content Safety API, which we provide to others to help them prioritize abuse content for human review.

Both CSAI Match and Content Safety API are available to qualifying entities who wish to fight abuse on their platforms—please see [here](#) for more details.

CSAI Match

CSAI Match

CSAI Match는 YouTube팀에서 개발한 독점적인 기술로서, 온라인 동영상 콘텐츠의 아동 성적 학대 이미지(child sexual abuse imagery, CSAI)를 근절하기 위해 고안되었습니다. 이는 정책을 위반하는 것으로 알려진 동영상을 식별하기 위해 해시 매칭을 활용한 최초의 기술로서, 정책을 준수하는 대량의 동영상 콘텐츠 중에서 위반 콘텐츠를 식별할 수 있게 해줍니다. 정책을 위반하는 콘텐츠가 발견되면 파트너 조직에 신고되며, 이러한 조직에서는 현지 법률 및 규정에 따라 책임감을 갖고 콘텐츠를 신고합니다. Google은 YouTube를 통해 NGO 및 Adobe, Reddit, Tumblr와 같은 업계 파트너 기업들이 플랫폼에서 온라인 아동 착취 동영상의 확산을 방지할 수 있도록 CSAI Match를 무료로 제공합니다.

Content Safety API

아동 성적 학대물 근절을 위한 도구 제공

Content Safety API

Google에서 개발한 도구인 Content Safety API는 인공지능을 활용하여 조직이 아동 성적 학대 콘텐츠의 우선순위를 더욱 효과적으로 설정하여 검토할 수 있게 해 줍니다. Google은 이 서비스를 무료로 제공하여 NGO 및 사기업이 아동을 보호하도록 지원합니다. 이 API는 이전에 발견되지 않은 잠재적인 불법 콘텐츠의 우선순위를 설정하여 검토자의 업무를 도움으로써 아동 성적 학대 콘텐츠를 근절하는 데 큰 힘이 됩니다. 덕분에 검토자는 7배나 더 빠르게 콘텐츠를 찾아 신고할 수 있습니다. 새로운 이미지를 식별하는 속도가 빨라지면 학대받는 아동을 발견하여 더 이상 학대를 당하지 않도록 보호할

플랫폼 및 서비스에서 아동 성 학대를 근절하려는 Google의 노력

Google은 초기부터 Google 서비스에서 아동 성 학대를 근절하기 위해 힘써 왔습니다.

Google은 아동 성 착취 콘텐츠 및 행위를 감지, 방지, 삭제 및 신고하기 위해 기술, 인력 및 시간과 같이 중요한 자원을 투자합니다. Google은 2008년부터 Google 서비스뿐만 아니라 다른 곳에도 존재하지 않을 이미지 사본을 식별하기 위해 알려진 아동 성적 학대 이미지의 고유한 디지털 ID를 만드는 '해싱' 기술을 사용해 왔습니다.

Google은 또한 다른 기업도 플랫폼에서 동일한 콘텐츠를 삭제할 수 있도록 알려진 아동 성적 학대 동영상을 식별하고 차단하기 위한 동영상 해시 저장소를 만들어 업계 내에서 공유했습니다.

2013년 Google은 아동 성적 학대물 이미지, 동영상, 링크가 검색결과에 나타나는 것을 더욱 적극적으로 방지하기 위해 검색 알고리즘을 수정했습니다. 그로부터 Google은 이러한 변화를 전 세계적으로 구현하여 수백만 개의 검색어를 자동으로 확인하고 있습니다.

Google 및 YouTube는 CSAI Match 및 Content Safety API 도구를 수많은 다른 내부 도구들과 함께 사용하여 검토의 우선순위를 설정하고 있습니다. 또한 최신 심층신경망 및 머신러닝 기술을 사용하여 이러한 검토 작업을 지원하고 있습니다.

아동 성적 학대물의 확산을 발견하고 근절하는 일에는 끊임없는 노력이 필요합니다. 정부, 법집행기관, NGO 및 업계는 모두 각자의 중요한 역할이 있습니다. Google은 자체 시스템 및 정책을 지속적으로 검토하고 조정해 나가면서 새로운 트렌드와 위험에 대응하고, 온라인상에서 아동을 가능한 한 효과적으로 보호하기 위해 가장 뛰어난 최신 기술을 통합합니다. Google의 아동 안전 정책을 관해 더 자세히 알아보려면 YouTube의 [커뮤니티 가이드](#) 및 [Google 안전 센터](#)를 확인하세요.

Google's
commitment
to
combating CSAM

What Google does when it detects CSAM on its platform

When we detect CSAM on our platforms, we remove it, make a “CyberTipline” report to the National Center for Missing and Exploited Children (“NCMEC”), and may terminate the user’s account. NCMEC serves as a clearinghouse and comprehensive reporting center in the United States for issues related to child exploitation. Once a report is received by NCMEC, they forward it to law enforcement agencies around the world as appropriate.

NCEI (Non-Consensual Explicit Imagery)

Google takes a strong stance against the sharing and transmission of Non-Consensual Explicit Imagery (NCEI). In 2015, Google updated our policies to honor requests from people to remove nude, intimate or sexually explicit images shared without their consent from Google Search results. Users are able to report potential NCEI through [this form](#), and Google will review and take action if needed. We will also take action against the sharing and transmission of NCEI across Google Products such as Blogger, Drive and Photos.

Google 검색 고객센터

문제를 설명해 주세요.

도움말 센터

소개

동의 없이 공유된 선정적 이미지나 은밀한 개인 이미지 Google에서 삭제하기

은밀하거나 선정적인 이미지와 동영상의 동의 없이 공유되는 것(리벤지 포르노라고도 함)은 굉장히 고통스러운 일입니다. 이 도움말에서는 이러한 이미지와 동영상을 Google 검색결과에서 삭제하도록 요청하는 절차를 안내합니다. Google 검색결과에서 콘텐츠를 삭제하도록 요청하려면 이 양식을 작성하세요. 본인을 대신하여 권한을 위임받은 대리인도 양식을 작성할 수 있습니다.

Google의 도움을 받을 수 있도록 먼저 콘텐츠 삭제 요청이 아래 요건에 모두 부합하는지 확인하시기 바랍니다.

1. 이미지에 성적인 행위를 하거나 은밀한 상태에서 과도하게 노출된 본인(또는 본인이 대변하는 사람)의 모습이 담겨 있습니다.

및

2. 본인(또는 본인이 대변하는 사람)은 관련 이미지 또는 행위에 동의하지 않았음에도 그 내용이 공개적으로 게시되었습니다.

또는

본인은 콘텐츠를 비공개로 하려고 했으나, '리벤지 포르노'와 같이 본인의 동의 없이 이미지가 공개적으로 게시되었습니다.

Google에서 콘텐츠를 삭제할지 판단할 때는 공익과 보도 가치를 고려한다는 점을 염두에 두시기 바랍니다. 대다수의 경우 이러한 유형의 이미지와 그와 함께 제공되는 콘텐츠에는 공익 차원의 가치가 없습니다. 매우 드물지만, 사용자에게 공개해야 하는 공익 차원의 강력한 필요성에 따라 신고된 콘텐츠를 삭제할 수 없는 경우가 있을 수 있습니다. 그 외의 경우에는 이미지와 함께 제공된 정보가 공익 차원에서 Google 검색결과에 계속 남아 있을 수 있습니다. 하지만 맥락이 없는 이미지 자체는 삭제될 수 있습니다.

Google에서는 검색결과에 특정 페이지가 표시되지 않도록 할 수 있지만 페이지를 호스팅하는 웹사이트에서 콘텐츠를 삭제할 수는 없으므로, 먼저 웹사이트 소유자에게 연락하여 삭제를 요청하시기 바랍니다. [절차 자세히 알아보기](#) [링크](#)

이미지 삭제 양식 작성 도움말

1. 삭제하려는 콘텐츠 유형에 해당하는 색선에서 '본인의 가짜 뉴스 또는 선정적인 사진/동영상'을 선택합니다.

NCEI Help Center page

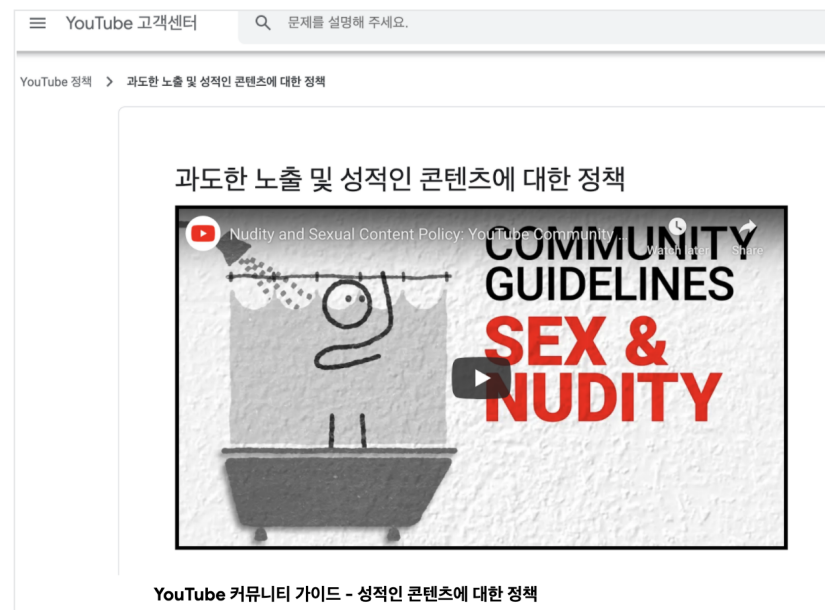
YouTube Community Guidelines

We have [Community Guidelines](#) - policies that outline what content is not acceptable to post. We work to quickly remove content that violates our policies. We use a combination of people and machine learning to detect potentially problematic content at scale, helping us remove millions of violative videos before they are ever viewed. And our investment in machine learning to help speed up removals is paying off across high-risk, low-volume areas (like violent extremism) and in high-volume areas (like spam). Once such content is identified, human review verifies whether it violates our policies. If it does, the content is removed and used to train our machines for better coverage in the future.

YouTube has [policies](#) against nudity and sexual content, including unwanted sexualization. Here is an example of content that is not allowed on YouTube.

- Groping, pantsing, public masturbation, upskirting, voyeurism, predatory exhibitionism, or any other content that depicts someone in a sexualized manner without their consent

If the content violates this policy, we'll remove the content and send the uploader an email to let them know. If this is their first time violating our Community Guidelines, they will get a warning with no penalty to their channel. If it's not, we'll issue a strike against the channel. If they get 3 strikes, the channel will be terminated.



YouTube
Community
Guidelines -
Sex & Nudity

II Number of removal requests, details of request, criteria for removal, review result, and outcome

Removal requests received between Dec 10, 2020 and Dec 31, 2020

For Search, we received 8 requests to delist 61 URLs between December 10, 2020 (the law's implementation date) and December 31, 2020 under this law. All cases were received through the government webform for South Korea and checkboxes for confirming that the content is being reported as illegal sexual content under the Telecommunications Business Act Article 22-5 and Enforcement Decree of the said Act Article 30-5(2).

All 8 requests were from government entities and they were voluntarily actioned on without deliberation by the Korea Communications Standards Commission. Out of the 61 URLs that were submitted in these requests, we delisted 42 URLs but did not take action on the remaining 19 URLs. This might have been because the content was already unavailable at the time of review or the URL was not indexed on our Search Results.

For YouTube, we did not receive any requests from government entities relating to this law between December 10, 2020 and December 31, 2020.

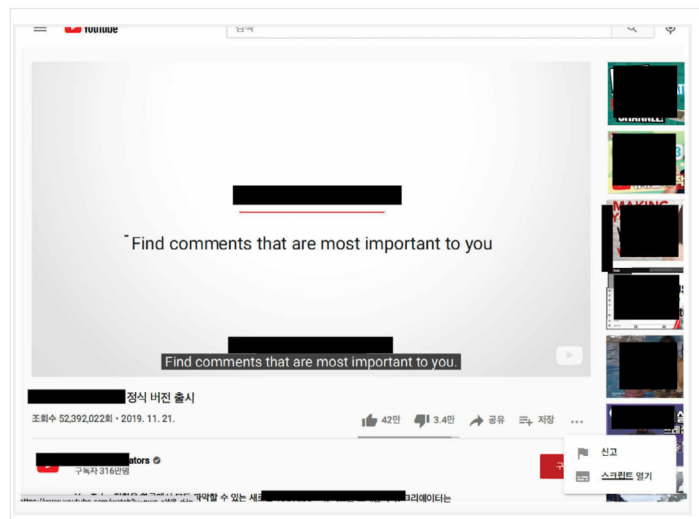
III Preparation and operation of the procedures required to prevent circulation of illegal photos, etc. including their deletion and blocking access to them

Google reviews content that is reported to be inappropriate or allegedly illegal and Google removes content that violates our policies or the law. Google takes this issue very seriously, especially when they fall under the category of “illegal sexual content” as stipulated under Article 22-5(1) of the Telecommunications Business Act of Korea. Google provides various channels for users to report or flag content on a Google product such as Google Search and YouTube when users believe that such content violates the relevant local laws, Google’s policies or infringes upon users’ rights. Once the reports are made, Google will review the materials and consider blocking, limiting, or removing access to such content from our products.

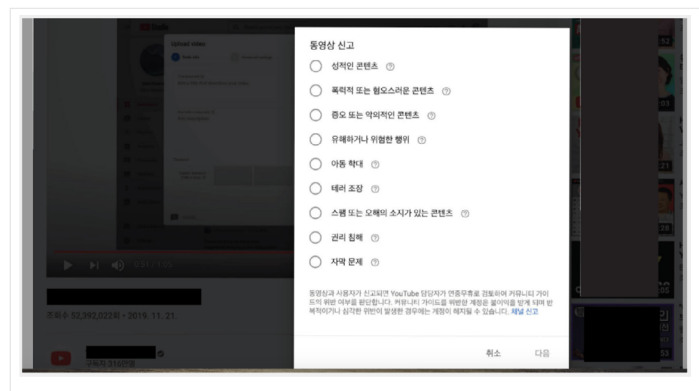
YouTube Flagging

Users can flag the inappropriate or illegal content found on YouTube from the page where the video is displayed. Reporting content is anonymous, so other users can't tell who made the report. When something is reported, it's not automatically taken down. Reported content is reviewed along the following guidelines:

- Content that violates our [Community Guidelines](#) is removed from YouTube.
- Content that may not be appropriate for all younger audiences may be [age-restricted](#).



YouTube flagging options



YouTube Trusted Flagger Program

YouTube has a Trusted Flagger program that is developed to help provide robust tools for individuals, government agencies, and non-governmental organizations (NGOs) that are particularly effective at notifying YouTube of content that violates our [Community Guidelines](#).

The YouTube Trusted Flagger program includes:

- A bulk-flagging tool that allows for reporting multiple videos at one time
- Visibility into decisions on flagged content
- Prioritized flag reviews for increased actionability
- Ongoing discussion and feedback on various YouTube content areas
- For NGOs only: Occasional online trainings

Google Search Webform to Report Content for Legal Reasons

Users can submit a [webform](#) report any allegedly illegal content found from Google's products including Google Search.

법적 삭제 요청

When users ask us to remove content



법률 위반할 것일 수 있는 콘텐츠를 Google에서 발견하면 알 주시기 바랍니다. 그러면 해당 자료를 신속히 검토한 후 액세스를 차단, 제거, 제한할지 여부를 고려하겠습니다. Google 서비스의 악성 콘텐츠는 Google의 제품 정책을 위반할 수도 있습니다. 그러므로 법적 요청서를 보내기 전에 Google 콘텐츠 팀이 검토할 수 있도록 해당 게시물, 이미지, 동영상 등을 신고하는 것을 고려해 주시기 바랍니다. Google의 제품 정책과 개인정보취급방침, 투명성을 위한 노력, 유출한 법적 고지를 Google에 제출하는 방법에 대한 자세한 내용을 알고 싶다면 다음을 계속 읽으시기 바랍니다.

[문제해결을 위한 지원 찾기](#)

[내 정보 보호하기](#)

[Google 장치의 투명성](#)

[저작권 이해](#)

[법적 요청 제출](#)

Google에서 콘텐츠 삭제

이 페이지에서는 관련법에 따라 Google 서비스에서 삭제하고 싶은 콘텐츠를 신고할 수 있는 적합한 페이지로 안내해 드립니다. 정보를 충분히 제공해 주시면 문의 내용을 조사하는 데 도움이 됩니다.

Google 서비스 [약관](#) 또는 제품 정책과 관련하여 법적인 문제가 있다면 다음 페이지를 방문하시기 바랍니다.
<http://support.google.com>

해당 콘텐츠가 표시되는 Google 서비스마다 신고서를 각각 제출해 주시기 바랍니다.

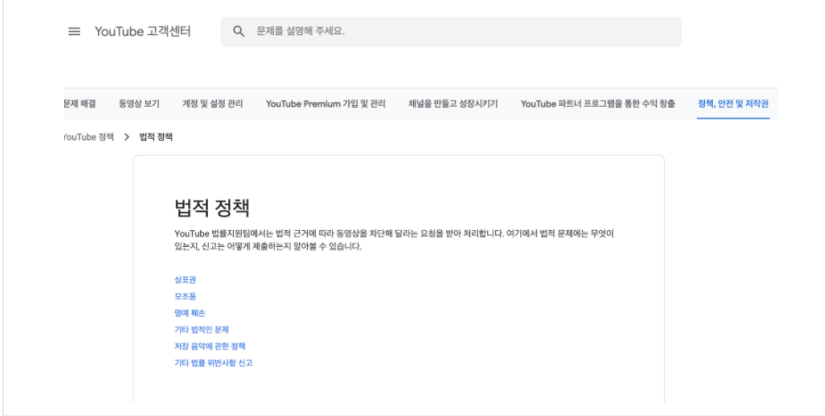
어떤 Google 제품과 관련된 요청입니까?

- ☐ Blogger/Blogspot
- ☐ Google+
- ☐ 웹 검색
- ☐ Google 광고
- ☐ Google 마이 비즈니스(리뷰, 질문 및 답변(Q&A), 비즈니스 정보)
- ☐ 드라이브 및 문서
- ☐ Google Play : 유익
- ☐ Google Play : 앱
- ☐ Google 소팅, 소팅 리뷰, 소팅 이미지
- ☐ 이미지 검색
- ☐ Picasa
- ☐ YouTube
- ☐ 더 많은 제품 보기

Google Search -
Webform to Report
Content for Legal
Reasons

YouTube Webform to Report Content for Legal Reasons

Users can submit a [webform](#) to report any allegedly illegal content found on YouTube specifically, including content that may violate local laws.

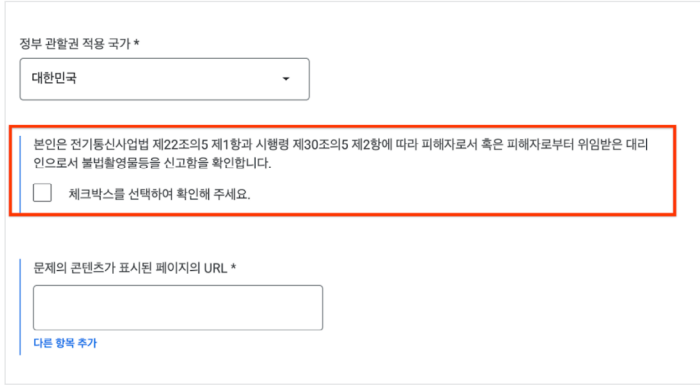


The screenshot shows the YouTube Help Center interface. At the top, there's a search bar and a navigation menu. The main content area is titled '법적 정책' (Legal Policy) and contains a brief explanation of YouTube's legal policy. Below the text, there are several links: '상표권' (Trademark), '모조품' (Counterfeit), '법적 책임' (Legal Liability), '가짜 법적인 문제' (Fake legal issues), '저작권 침해에 관한 정책' (Policy on copyright infringement), and '가짜 법률 위반사항 신고' (Report fake legal violations).

YouTube - Webform to Report Content for Legal Reasons

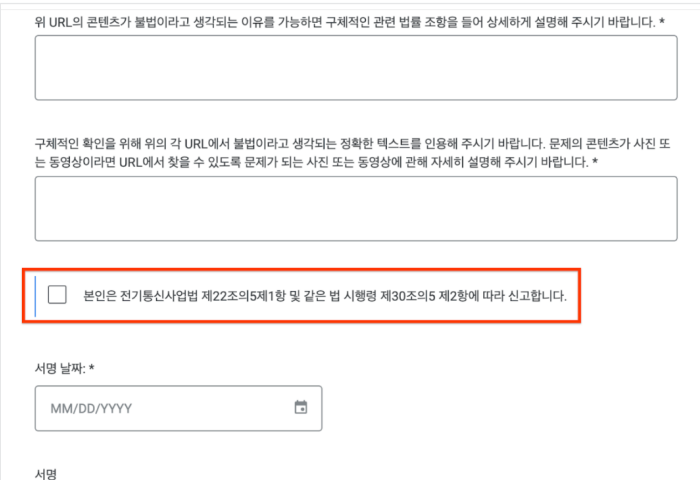
Government-Facing Webforms to Report Content for Legal Reasons

In addition to the channels available for reporting allegedly illegal content found on our products as mentioned above, in compliance with Telecommunications Business Act Article 22-5(1), Google and YouTube have updated our government agency-facing request webforms (i.e., included a checkbox to confirm that the removal requests are made pursuant to this law) to ensure that illegal sexual content under the relevant local laws are flagged to the appropriate teams for Google Search and YouTube.



The screenshot shows the Google Search Government-facing Webform. It includes a dropdown menu for '정부 관할권 적용 국가 *' (Government jurisdiction application country) with '대한민국' (South Korea) selected. Below this, there's a red-bordered box containing the text: '본인은 전기통신사업법 제22조의5 제1항과 시행령 제30조의5 제2항에 따라 피해자로서 혹은 피해자로부터 위임받은 대리인으로서 불법촬영물등을 신고함을 확인합니다.' (I confirm that I am reporting illegal recording materials as a victim or as a representative authorized by the victim pursuant to Article 22-5(1) of the Telecommunications Business Act and Article 30-5(2) of the Enforcement Regulations). Below this box is a checkbox labeled '체크박스를 선택하여 확인해 주세요.' (Please check this box to confirm). At the bottom, there's a text input field for '문제의 콘텐츠가 표시된 페이지의 URL *' (URL of the page displaying the problematic content) and a link '다른 항목 추가' (Add other items).

Google Search - Government-facing Webform to Report Content for Legal Reasons



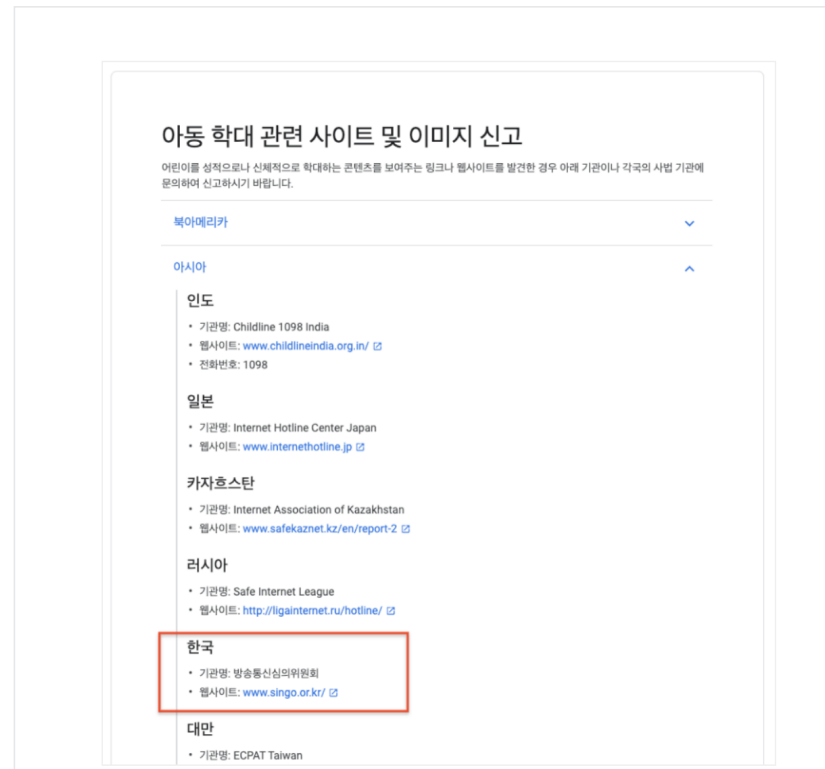
The screenshot shows the YouTube Government-facing Webform. It includes a text input field for '위 URL의 콘텐츠가 불법이라고 생각되는 이유를 가능하면 구체적인 관련 법률 조항을 들어 상세하게 설명해 주시기 바랍니다. *' (Please explain in detail the reasons why you think the content on the above URL is illegal, citing specific relevant legal provisions where possible). Below this, there's another text input field for '구체적인 확인을 위해 위의 각 URL에서 불법이라고 생각되는 정확한 텍스트를 인용해 주시기 바랍니다. 문제의 콘텐츠가 사진 또는 동영상이라면 URL에서 찾을 수 있도록 문제가 되는 사진 또는 동영상에 관해 자세히 설명해 주시기 바랍니다. *' (Please cite the exact text that you think is illegal on each of the above URLs for specific confirmation. If the problematic content is a photo or video, please explain in detail about the photo or video so that we can find it on the URL). Below these fields, there's a red-bordered box containing the text: '본인은 전기통신사업법 제22조의5제1항 및 같은 법 시행령 제30조의5 제2항에 따라 신고합니다.' (I report pursuant to Article 22-5(1) of the Telecommunications Business Act and Article 30-5(2) of the Enforcement Regulations). At the bottom, there's a text input field for '서명 날짜: *' (Signature date) and a date picker.

YouTube - Government-facing Webform to Report Content for Legal Reasons

CSAM Reporting Help Center Article

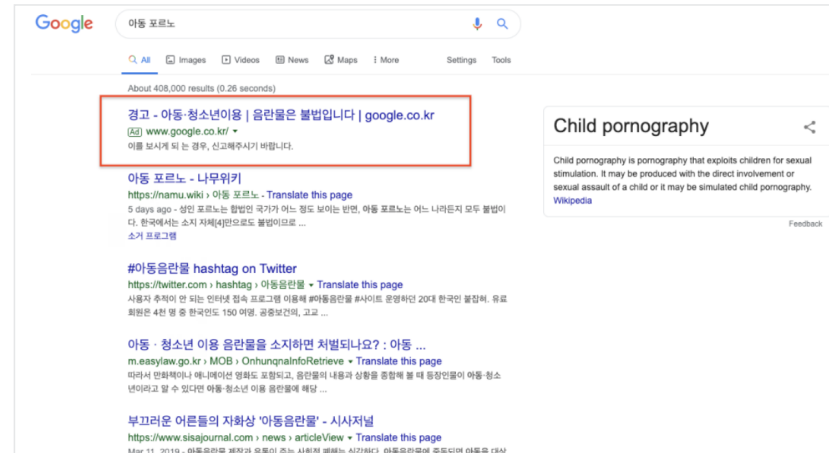
Google has a [help center article](#) explaining how users can report sexual or physical child abuse content to the relevant government agency including their contact information.

Government agencies
for reporting CSAM



Google Search - Warning Ads on Porn-Seeking Queries

In addition, when porn-seeking queries are searched, Google Search pushes an advertisement which works as a warning to users, asking them to report any porn or illegal content that are found on the Internet to the relevant government agencies and notifying that pornography and child abusive sexual content in Korea are illegal.



Warning Ads
on Search



Reporting option
for CSAM

IV Placement of persons in charge of preventing circulation of illegal photos, etc.

Google has designated David Graff, Vice President of Trust and Safety department to be the person in charge of preventing the circulation of illegal video content pursuant to Article 44-9 of the Information and Communication Network Act and the Enforcement Decree of the said Act. This department develops, oversees and manages the policies and operations for the removal of content from Google services (e.g. Google Search) that are flagged to be illegal or in violation of Google's policies. The Trust and Safety department includes analysts, policy specialists, engineers, program managers and more.

V Internal education about preventing circulation of illegal photos, etc. and support for the education

Google has numerous teams around the globe reviewing content uploaded on Google products. Training is offered to these content monitoring teams on various topics including child safety, sexually inappropriate behavior, review processes and tools, and operations. The training is generally conducted face to face (except last year where most training was offered online through virtual conference due to COVID-19) and trainees are evaluated on the training topics afterwards.

Global Transparency Report

Lastly, Google's long-term efforts on combating inappropriate and/or illegal content and keeping the internet space safe can be found on Google's global Transparency Report. Please refer to the following websites for details:



**Google Transparency Report -
Government Request to remove contents**

[Check it out](#)



**Google Transparency Report - YouTube
Community Guideline Enforcement**

[Check it out](#)